

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3555

By: Eaves

AS INTRODUCED

An Act relating to public safety; amending 47 O.S. 2021, Section 2-117, which relates to police authority of the Department of Public Safety; making certain exception for municipal police departments; providing for application for roadway designation as a safety corridor; listing requirements of application; requiring review and approval or denial of application; listing certain considerations; authorizing designation be valid for certain period of time; detailing action upon approval; authorizing renewal designation; limiting use of designation; defining term; authorizing the promulgation of rules; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 2-117, is amended to read as follows:

Section 2-117. A. The Commissioner of Public Safety and each officer of the Department of Public Safety, as designated and commissioned by the Commissioner, are hereby declared to be peace officers of the State of Oklahoma and shall be so deemed and taken in all courts having jurisdiction of offenses against the laws of

1 the state. Such officers shall have the powers and authority now
2 and hereafter vested by law in other peace officers, including the
3 right and power of search and seizure, except the serving or
4 execution of civil process, and the right and power to investigate
5 and prevent crime and to enforce the criminal laws of this state.

6 B. In addition to the powers and authority prescribed in
7 subsection A of this section, the officers of the Department shall
8 have the following authority, responsibilities, powers and duties:

9 1. To enforce the provisions of this title and any other law
10 regulating the operation of vehicles or the use of the highways,
11 including, but not limited to, the Motor Carriers Act of this state,
12 or any other laws of this state by the direction of the Governor;

13 2. To arrest without writ, rule, order or process any person
14 detected by them in the act of violating any law of the state;

15 3. When the officer is in pursuit of a violator or suspected
16 violator and is unable to arrest such violator or suspected violator
17 within the limits of the jurisdiction of the Oklahoma Highway Patrol
18 Division, to continue in pursuit of such violator or suspected
19 violator into whatever part of the state may be reasonably necessary
20 to effect the apprehension and arrest of the same, and to arrest
21 such violator or suspected violator wherever the violator may be
22 overtaken;

23 4. To assist in the location of stolen property, including
24 livestock and poultry or the carcasses thereof, and to make any

1 inspection necessary of any truck, trailer or contents thereof in
2 connection therewith;

3 5. At all times to direct all traffic in conformance with law
4 and, in the event of a fire, or other emergency, or to expedite
5 traffic, or to ~~insure~~ ensure safety, to direct traffic as conditions
6 may require, notwithstanding the provisions of law;

7 6. To require satisfactory proof of ownership of the contents
8 of any motor vehicle, including livestock, poultry or the carcasses
9 thereof. In the event that the proof of ownership is not
10 satisfactory, it shall be the duty of the officer to take the motor
11 vehicle, driver, and the contents of the motor vehicle into custody
12 and deliver the same to the sheriff of the county wherein the cargo,
13 motor vehicle and driver are taken into custody;

14 7. When on duty, upon reasonable belief that any vehicle is
15 being operated in violation of any provisions of this title, or any
16 other law regulating the operation of vehicles, to require the
17 driver thereof to stop and exhibit his or her driver license and the
18 certificate of registration issued for the vehicle, if required to
19 be carried in the vehicle pursuant to paragraph 3 of subsection A of
20 Section 1113 of this title, and submit to an inspection of such
21 vehicle, the license plates and certificate of registration thereon,
22 if applicable, or to any inspection and test of the equipment of
23 such vehicle;

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1 8. To inspect any vehicle of a type required to be registered
2 hereunder in any public garage or repair shop or in any place where
3 such vehicles are held for sale or wrecking, for the purpose of
4 locating stolen vehicles and investigating the title and
5 registration thereof;

6 9. To serve all warrants relating to the enforcement of the
7 laws regulating the operation of vehicles or the use of the highways
8 and bench warrants issued for nonpayment of fines and costs for
9 moving traffic violations;

10 10. To investigate and report traffic collisions on all
11 interstate and defense highways and on all highways outside of
12 incorporated municipalities, and may investigate traffic collisions
13 within any incorporated municipality upon request of the local law
14 enforcement agency, and to secure testimony of witnesses or of
15 persons involved;

16 11. To investigate reported thefts of motor vehicles, trailers
17 and semitrailers;

18 12. To stop and inspect any motor vehicle or trailer for such
19 mechanical tests as may be prescribed by the Commissioner to
20 determine the roadworthiness of the vehicle. Any vehicle which may
21 be found to be unsafe for use on the highways may be ordered removed
22 from said highway until such alterations or repairs have been made
23 that will render said vehicle serviceable for use on the highway;

1 13. To stop and inspect the contents of all motor vehicles to
2 ascertain whether or not the provisions of all general laws are
3 being observed;

4 14. To enforce the laws of the state relating to the
5 registration and licensing of motor vehicles;

6 15. To enforce the laws relating to the operation and use of
7 vehicles on the highway;

8 16. To enforce and prevent, on the roads of the state highway
9 system, the violation of the laws relating to the size, weight, and
10 speed of commercial motor vehicles and all laws designed for the
11 protection of the highway pavements and structures on such highways;

12 17. To investigate and report to the Corporation Commission and
13 the Oklahoma Tax Commission violation of their rules and the laws
14 governing the transportation of persons and property by motor
15 transportation companies and all other motor carriers for hire;

16 18. To investigate and report violations of all laws relating
17 to the collection of excise taxes on motor vehicle fuels;

18 19. To regulate the movement of traffic on the roads of the
19 state highway system;

20 20. Whenever possible, to determine persons causing or
21 responsible for the breaking, damaging, or destruction of any
22 improved surfaced roadway, structure, sign, marker, guardrail, or
23 any other appurtenance constructed or maintained by the Department
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1 of Transportation, and to arrest persons responsible thereof and to
2 bring them before the proper officials for prosecution;

3 21. To investigate incidents involving an employee of the
4 Department, when such incidents are related to the performance of
5 the duties of the employee; and

6 22. To initiate or assist in manhunts and fugitive
7 apprehensions.

8 C. Whenever any person is arrested by a patrol officer for a
9 traffic violation, the provisions of Sections 16-101 through 16-114
10 of this title shall apply.

11 D. 1. Except as provided in this subsection, the powers and
12 duties conferred on the Commissioner and officers of the Department
13 of Public Safety shall not limit the powers and duties of sheriffs
14 or other peace officers of the state or any political subdivision of
15 the state.

16 2. The Oklahoma Highway Patrol Division shall have primary law
17 enforcement authority respecting traffic-related offenses upon the
18 National System of Interstate and Defense Highways, and may have
19 special law enforcement authority on those portions of the federal-
20 aid primary highways and the state highway system which are located
21 within the boundaries and on the outskirts of a municipality, and
22 designated by the Commissioner of Public Safety for such special law
23 enforcement authority. As used in this subsection, "outskirts of a
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1 municipality" means and shall be determined by presence of the
2 following factors:

- 3 a. low land use density,
- 4 b. absence of any school or residential subdivision
5 requiring direct ingress or egress from the highway,
6 and
- 7 c. a scarcity of retail or commercial business abutting
8 the highway.

9 3. The Commissioner may designate any portion of the National
10 System of Interstate and Defense Highways, and those portions of the
11 federal-aid primary highways and the state highway system which are
12 located within the boundaries of and on the outskirts of a
13 municipality for special traffic-related enforcement by the Oklahoma
14 Highway Patrol Division and issue a written notice to any other law
15 enforcement agency affected thereby. Upon receipt of such notice,
16 the affected law enforcement agency shall not regulate traffic nor
17 enforce traffic-related statutes or ordinances upon such designated
18 portion of the National System of Interstate and Defense Highways or
19 such designated portions of the federal-aid primary highways and the
20 state highway system without prior coordination and written approval
21 of the Commissioner.

22 E. 1. Any of the following persons may request the
23 Commissioner to investigate the traffic-related enforcement
24 practices of a municipal law enforcement agency whose jurisdiction

1 includes portions of the federal-aid primary highways, the state
2 highway system, or both located within the boundaries of and on the
3 outskirts of the municipality:

- 4 a. the district attorney in whose jurisdiction the
5 municipality is located,
- 6 b. a majority of the county commissioners, by resolution,
7 of the county in which the municipality is located,
- 8 c. the State Auditor and Inspector,
- 9 d. the State Attorney General, or
- 10 e. a state legislator in whose district the municipality
11 is located.

12 2. The request shall state that the requesting party believes
13 the enforcement practices are being conducted:

- 14 a. within the boundaries of and on the outskirts of the
15 municipality, and
- 16 b. for the purpose of generating more than fifty percent
17 (50%) of the revenue needed for the operation of the
18 municipality.

19 3. Upon receipt of a request pursuant to this subsection, the
20 Commissioner may investigate the traffic-related enforcement
21 practices of the municipal law enforcement agency and the receipts
22 and expenditures of the municipality. The law enforcement agency,
23 the municipality, and the requesting party shall cooperate fully
24 with the Commissioner in such an investigation. Upon the completion

1 of the investigation, the Commissioner shall submit a report of the
2 results of the investigation to the Attorney General, who shall make
3 a determination within sixty (60) days of receipt of the report as
4 to whether the enforcement practices of the municipal law
5 enforcement agency are being conducted as provided in subparagraphs
6 a and b of paragraph 2 of this subsection. Upon a determination
7 that the enforcement practices are not being conducted in such a
8 manner, the Attorney General shall notify the Commissioner in
9 writing, and the Commissioner shall take no action to make a
10 designation as provided in paragraph 3 of subsection D of this
11 section. Upon a determination that the enforcement practices are
12 being conducted as provided in subparagraphs a and b of paragraph 2
13 of this subsection, the Attorney General shall notify the
14 Commissioner in writing, and the Commissioner shall make the
15 designation of special traffic-related enforcement as provided in
16 paragraph 3 of subsection D of this section, which shall stay in
17 force for such time as determined by the Commissioner. The
18 Department of Public Safety shall adopt rules to uniformly implement
19 the procedures for initiating, investigating and reporting to the
20 Attorney General the results of a request under the provisions of
21 this subsection and the criteria for determining the length of time
22 the designation of special traffic-related enforcement shall be in
23 force.

1 F. Nothing in this section shall limit a member of the Oklahoma
2 Highway Patrol Division from requesting assistance from any other
3 law enforcement agency nor limit officers of such agency from
4 rendering the requested assistance. The officer and the law
5 enforcement agency responding to the request of the member of the
6 Oklahoma Highway Patrol Division or sheriff's department shall have
7 the same rights and immunities as are possessed by the Oklahoma
8 Highway Patrol Division.

9 G. No state official shall have any power, right, or authority
10 to command, order, or direct any commissioned law enforcement
11 officer of the Department of Public Safety to perform any duty or
12 service contrary to the provisions of this title or any other laws
13 of this state.

14 H. 1. A municipality may exceed the revenue cap described in
15 paragraph 2 of subsection E of this section for traffic violations
16 occurring within a designated safety corridor. A municipality may
17 submit a joint application to the Oklahoma Department of Public
18 Safety and the Oklahoma Department of Transportation requesting
19 designation of a specific roadway segment as a designated safety
20 corridor. The application shall include:

21 a. traffic and citation data for the prior twelve (12)
22 months,

23 b. evidence of a pattern of excessive speeding, traffic
24 accidents, or fatalities, and

1 c. a plan for increased enforcement and public safety
2 measures;

3 2. Upon review of the application, the Oklahoma Department of
4 Public Safety and the Oklahoma Department of Transportation shall
5 approve or deny the request based upon:

6 a. the severity and frequency of traffic safety concerns
7 in the proposed corridor,

8 b. supporting traffic studies or data, and

9 c. the reasonableness of the enforcement plan proposed by
10 the municipality;

11 3. If approved, the safety corridor designation shall be valid
12 for a period of six (6) months, during which time:

13 a. the municipality may exceed the revenue cap described
14 in paragraph 2 of subsection E of this section for
15 violations occurring strictly within the designated
16 corridor,

17 b. additional enforcement and signage shall be used to
18 promote public awareness and deter violations, and

19 c. data on citations, accidents, and compliance shall be
20 collected and submitted to the Department of Public
21 Safety and the Oklahoma Department of Transportation;

22 4. The safety corridor designation may be renewed for
23 subsequent six-month periods upon reapplication and updated data
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1 submission, subject to approval by the Oklahoma Department of Public
2 Safety and the Oklahoma Department of Transportation;

3 5. Nothing in this subsection shall be construed to permit
4 municipalities to use traffic enforcement as a primary revenue-
5 generation mechanism contrary to public safety objectives;

6 6. For purposes of this section, a "designated safety corridor"
7 means a specifically identified segment of roadway within the
8 jurisdiction or on the outskirts of a municipality that has been
9 approved by the Oklahoma Department of Public Safety and the
10 Oklahoma Department of Transportation for enhanced traffic
11 enforcement based on demonstrated patterns of excessive speeding,
12 high accident rates, or traffic-related fatalities. The purpose of
13 the designation is to reduce traffic violations and improve public
14 safety through targeted enforcement and visibility measures.

15 7. The Department of Public Safety and the Oklahoma Department
16 of Transportation are authorized to promulgate any rules necessary
17 to effectuate the provisions of this subsection.

18 SECTION 2. This act shall become effective November 1, 2026.

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